

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 08/14/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Wodynski-Minor's</u> <u>Compromise</u> 30-2023-01303618	Motion to Vacate The Motion to Vacate a Void Order Per CCP Section 473(d) and CCP 430.80 (ROA 235) is DENIED. <u>Relevant procedural history.</u> This matter arises out of a petition for minor's compromise (ROA 2) filed on January 13, 2023. Because of concerns raised by the proposed settlement, on June 27, 2023, the court appointed Melinda Bellas the Guardian Ad Litem ("GAL") for the minor child. (ROA 60.) In the following months, the GAL prepared and submitted two reports to the court (ROA 79 and ROA 113). On December 19, 2023, the attorney for the minor child filed a "withdrawal" of the petition (ROA 195). On December 21, 2023, the court deemed the notice of withdrawal to be a request for dismissal and dismissed the petition without prejudice. (ROA 206.) More than ten months later, the GAL filed a petition for payment of fees (ROA 218), which was set for hearing on May 6, 2025. The court's record is silent as to whether anyone was served with the petition when it was filed. At the hearing on May 6, 2025, the petition for fees was continued to September 23, 2025. (ROA 222.) On September 23, 2025, the petition for fees was again continued, this time to April 21, 2026. (ROA 224.) Notice of the April 21, 2026, hearing was provided to the minor child, the minor child's mother, and the minor child's attorney. (ROA 226.) On April 21, 2026, the court scheduled a trial setting conference for July 7, 2026, which was subsequently continued to February 2, 2027. (ROA 238 and ROA 249). By the motion before the court this day, the minor child seeks to vacate the court's April 21, 2026, order scheduling a trial setting conference. The minor child asserts the court lacked jurisdiction

to schedule the trial setting conference, rendering the order void under Code of Civil Procedure section 473(d) (section 473(d)).

Code of Civil Procedure section 473 (d).

Code of Civil Procedure section 473(d) provides, in its entirety, that the “court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

It is well settled that in “determining whether an order is void for purposes of section 473, subdivision (d), courts distinguish between orders that are void on the face of the record and orders that appear valid on the face of the record but are shown to be invalid through consideration of extrinsic evidence. This distinction may be important in a particular case because it impacts the procedural mechanism available to attack the judgment [or order], when the judgment [or order] may be attacked, and how the party challenging the judgment [or order] proves that the judgment [or order] is void. ... An order is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence. ... If the invalidity can be shown **only** through consideration of extrinsic evidence, such as declarations or testimony, the order is **not void on its face.**” (*Pittman v. Beck Park Apartments Ltd.* (2018) 20 Cal. App. 5th 1009, 1020–1021. Emphasis added and internal citations and quotation marks omitted.)

In this case, the motion to vacate asserts that the court’s order scheduling a trial setting conference on the GAL’s petition for fees is void on its face because the minor’s compromise petition was dismissed.

The court’s jurisdiction after dismissal. It is well settled that a “plaintiff’s voluntary dismissal of an action generally deprives the court of jurisdiction in the case. Accordingly, most orders entered after the dismissal are void and have no effect. ... Notwithstanding this general principle ... [w]hen a postdismissal

		or postjudgment motion involves collateral statutory rights, then the court may retain jurisdiction to determine and enforce those rights.” (<i>Pittman v. Beck Park Apartments Ltd., supra</i>, 20 Cal. App. 5th 1009, 1022. Emphasis added and internal citations and quotation marks omitted. In this case, the GAL has a statutory right to fees pursuant to Probate Code section 1003(c) providing that the reasonable expenses of the guardian ad litem, including compensation and attorney’s fees, shall be determined by the court and paid as the court orders, either out of the property of the estate involved or by the petitioner or from any other source as the court orders. (see <i>Maniago v. Desert Cardiology Consultants’ Medical Group, Inc.</i> (2026) ___ Cal.5th ___ S290188; July 16, 2026.) Accordingly, and based on the record presented and the applicable legal principles, the court finds that the GAL’s request/petition for fees is a collateral matter relating to a collateral statutory right, and that the court has jurisdiction to schedule a trial setting conference on the GAL’s petition for those fees. The Motion to Vacate pursuant to Code of Civil Procedure Section 473(d) and Code of Civil Procedure section 430.80 (ROA 235) is DENIED. The attorney for the minor child is ordered to provide notice of this ruling.
2	<u>Sansky-Trust</u> <u>30-2025-01487738</u>	MOTION TO QUASH Respondent Heather Sansky’s Motion to Quash Petitioner Angelie Hand’s Deposition Subpoena for Production of Business Records (ROA 32) is DENIED. Respondent seeks to quash subpoenas issued by Petitioner to Providence Mission Hospital Mission Viejo, UCI Health Irvine, Hoag Hospital, St. Joseph’s Hospital City of Orange, Mission Hospital Laguna Beach, and Kaiser Permanente Alton/San Canyon Medical seeking the medical records of Bonnie Christine Sansky (Decedent) from January 1, 1990, through December 31, 2015. Respondent argues the subpoenas should be quashed because they: (1) seek irrelevant documents; (2) fail to describe

the requested documents with sufficient particularity; (3) violate Decedent’s constitutionally protected privacy rights; and (4) violate the physician-patient privilege (Evid. Code, § 992). Each ground is addressed below.

Sufficient Particularity. Each subpoena seeks “All Medical Records regarding Bonnie Christine Sansky from January 1, 1990-December 31, 2015. Date of Birth February 20, 1949.” The court finds that the subpoenas sufficiently describe the requested documents.

Privacy. Respondent argues the subpoenas should be quashed because they seek documents protected by the right of privacy. The subpoenas seek documents relating to Decedent. It is well settled that Decedent’s right of privacy ceased with her death. (*Hendrickson v. California Newspapers, Inc.* (1975) 48 Cal. App. 3rd 59, 62 [“It is well settled that the right of privacy is purely a personal one; it cannot be asserted by anyone other than the person whose privacy has been invaded. . . Further, the right does not survive but dies with the person”].)

Physician-Patient Privilege. Respondent argues the subpoenas should be quashed because they call for documents protected by the physician-patient privilege. Pursuant to Evidence Code section 994, a patient “has a privilege to refuse to disclose, and to prevent another from disclosing, a confidential communication between patient and physician if the privilege is claimed by” [¶] (a) The holder of the privilege; [¶] (b) A person who is authorized to claim the privilege by the holder of the privilege; or [¶] (c) The person who has the physician at the time of the confidential communication, but such person may not claim the privilege if there is no holder of the privilege in existence or if he or she is otherwise instructed by a person authorized to permit disclosure.” The holder of the privilege is the patient, a guardian or conservator of the patient (if any) or the “personal representative” of the patient if the patient is dead. (Evid. Code, § 993.) In this case, the patient is dead, so the privilege can only be asserted by Decedent’s “personal representative.” Respondent has not been appointed a personal representative and, accordingly, cannot assert the privilege on Decedent’s behalf.

Relevance. The scope of discovery is very broad. (*See State Farm Mutual Automobile Ins. C. v. Lee* (2011) 193 Cal. App. 4th 34, 40.) It is well settled that “[a]ny doubts regarding relevance are generally resolved in favor of allowing the discovery.” (*Mercury*

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